

Schedule 4 – Agreement (Terms and Conditions)

The below referenced Agreement Template is the preferred set of terms for CQU to conduct business resulting from this Invitation. The supplier must nominate one of the following options with their Invitation response:

- a) Accept the Agreement without any proposed amendments;
- b) Accept the Agreement and propose amendments for CQU to consider (Any requested deviations to the Agreement must be presented in the provided departures table and submitted as part of the respondent's tender response.); or,
- c) Unable to agree to CQU's Agreement; please include a detailed explanation as to the reason and proposed way forward (e.g., provision of Supplier terms) for this with your tender response.

PLEASE NOTE: Any requests to amend the proposed terms and conditions of the Invitation must be submitted with the tender response and before the Invitation close date and time. Any requests to amend the proposed terms and conditions after the close date of the Invitation will cause the Response to be considered non-compliant with the tender and reassessed accordingly.

Agreement template included: AS4902-2000 General Conditions of Contract for Design and Construct (amended by McCullough Robertson Lawyers,) in conjunction with a Formal Instrument of Agreement.

Payment Terms: In accordance with Building Industry Fairness (Security of Payment) Act 2017.

Schedule 5 – Supplier Acceptance to Participate

Invitation "Title"	"Title" the same as the title of the 'Procurement Quotation Form (Invitation)'	
Supplier	Trading name	
Supplier	ABN	
Supplier	Address	
If applicable	Partnership name	
If trustee	Trust name	
Supplier	Is registered for GST?	If no, Exemption Number
Representative	Name	
	Phone	
	Email	
Are you defined as a <u>Small/Medium Enterprise</u> ? ☐ Yes ☐ No		
Schedule 4 Response	☐ Accept the Agreement without any proposed amendments. ☐ Accept the Agreement and propose amendments for CQU to consider (amendments <u>must</u> be submitted within the provided departures table). ☐ Unable to agree to CQU's Agreement. Detailed explanation and proposed alternative:	
Schedule 4 Payment Terms	☐ Accepts payment in accordance with the Building Industry Fairness (Security of Payment) Act 2017. ☐ Requests alternate payment terms. Detailed explanation and proposed alternative:	

The Supplier acknowledges and agrees with the terms and conditions of this Invitation (as outlined in Procurement Quotation Form (Invitation)) and is willing to participate, as accepted by their duly authorized representative below.

Signature _____
 Name _____
 Position _____
 Date _____

Schedule 6 – Social and First Nations Enterprise

Is your company a Social Enterprise or an Aboriginal and Torres Strait Islander Enterprise?

Social Enterprise

- ☐ Social Traders Certified; or,
- ☐ Self-Assessed

Aboriginal and Torres Strait Islander Enterprise

- ☐ Supply Nation Certified
- ☐ Supply Nation Registered
- ☐ First Nations' Person/People Owned

If yes to any of the above, please elaborate (e.g. certified by Social Traders, Supply Nation etc.):

Does your company:

Provide any Social Impact or is it involved in any socially responsible innovations / services / procurement?

If yes, please elaborate:

Provide opportunities to First Nations peoples through:

- ☐ Workforce planning and career development;
- ☐ Have policies outlining the inclusion of First Nations peoples in the workplace;
- ☐ Collaborating or encouraging relevant philanthropic activities, or;
- ☐ Other.

If yes to any of the above, please elaborate: